

6TH SCH.,  
—cont.

| Session and Chapter.      | Title or Short Title.                                             | Extent of Repeal.                                                                           |
|---------------------------|-------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| 11 & 12 Geo. 5.<br>c. 24. | The Deceased Brother's Widow's Marriage Act, 1921.                | Subsection (2) of section one.                                                              |
| 11 & 12 Geo. 5.<br>c. 56. | The Supreme Court Officers (Retirement, Pensions, &c.) Act, 1921. | The whole Act.                                                                              |
| 13 & 14 Geo. 5.<br>c. 19. | The Matrimonial Causes Act, 1923.                                 | The whole Act.                                                                              |
| 15 & 16 Geo. 5.<br>c. 23. | The Administration of Estates Act, 1925.                          | Sections four, ten to fourteen, sixteen, and eighteen to twenty.                            |
| 15 & 16 Geo. 5.<br>c. 28. | The Administration of Justice Act, 1925.                          | Sections one to eighteen, twenty-one, twenty-four to twenty-six and Schedules one to three. |

## CHAPTER 50.

An Act to provide for the Registration of Employers of Theatrical Employees and for purposes incidental thereto. [31st July 1925.]

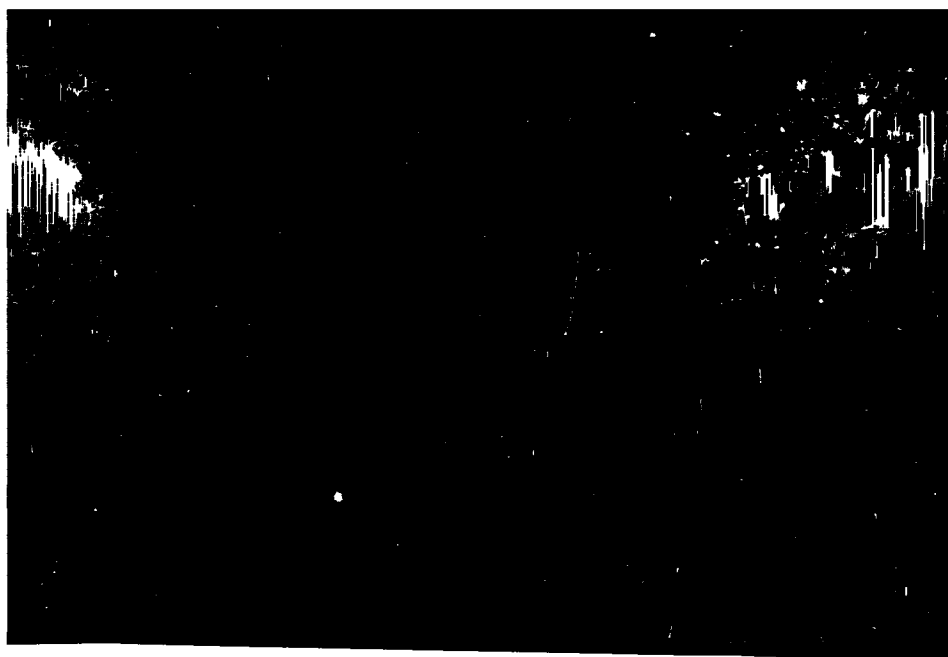
**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Register of  
theatrical  
employers  
to be estab-  
lished in  
local areas.

1. Every registration authority within the meaning of this Act shall establish and keep a register of theatrical employers. The register of theatrical employers shall be in the prescribed form and shall be open to inspection by any member of the public during ordinary office hours on payment of the prescribed fee.

Publication  
of intention  
to register.

2. Every theatrical employer as hereinafter defined shall, not more than six weeks nor less than twenty-one days before registering himself as a theatrical employer, insert in a London newspaper devoted to the interest





**Theatrical Employers Registration Act, 1925.**

[15 & 16 GEO. 5. CH. 50.]

**ERRATUM.**

Section 4.—The inverted commas printed throughout this section should be deleted.

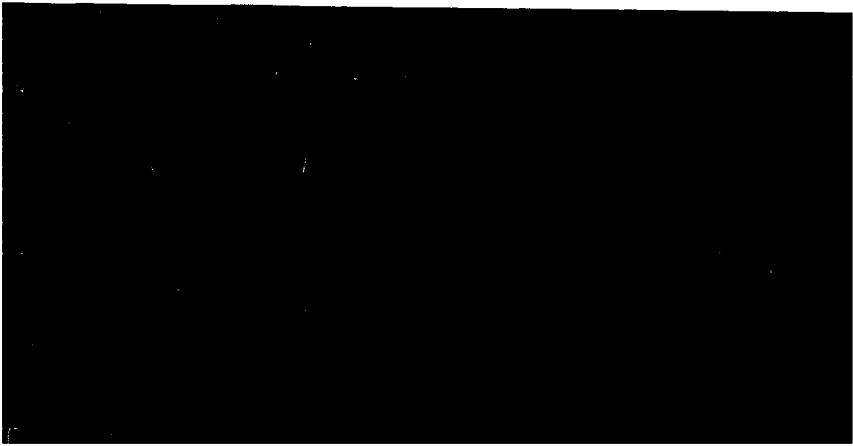
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of the stage profession, in two different issues, a notice stating that he intends so to register, with the date thereof.'

3. Every theatrical employer as hereinafter defined shall register himself as a theatrical employer with the registration authority of the area where he resides, or if he has no fixed place of residence in Great Britain with any registration authority, and shall furnish such authority with the prescribed particulars. If any circumstance occurs in relation to any theatrical employer which affects the accuracy of any particulars as respects the theatrical employer in the register of theatrical employers, the theatrical employer in question shall forthwith in writing inform the registration authority with which he has been registered, and shall forward to the authority his certificate of registration to be amended, and on receipt of such information the registration authority shall forthwith cause the entries respecting that theatrical employer and the certificate to be amended accordingly. The registration authority may charge such fee not exceeding forty shillings as may be prescribed for such registration but shall not be entitled to charge any fee for such amendments as aforesaid.

Theatrical  
employers  
to register.

4. The registration authority shall as soon as possible after registration by a theatrical employer issue to him a certificate of registration under the hand of a duly authorised officer of the registration authority. Such certificate shall be in the "prescribed form and any "document purporting to be such a certificate shall be "evidence of the facts to which it relates." The registration authority shall immediately on the issue of a certificate of registration and on any amendment or entry in the register of theatrical employers being made transmit to the Secretary of State in such manner as may be prescribed particulars of such registration, amendment or entry, and "such particulars shall be "open to inspection by the public, subject to the "prescribed conditions as to payment of fees and "otherwise."

Certificates  
of registra-  
tion to be  
issued.

5. Any theatrical employer shall be guilty of an offence under this Act—

Offences  
under the  
Act.

- (a) Who during the course of a theatrical engagement abandons the theatrical performers;

- (b) Who on or after the first day of January nineteen hundred and twenty-six carries on the business of a theatrical employer without being registered;
- (c) Who supplies false or misleading or incorrect particulars to the registration authority or fails within a reasonable time to inform the registration authority of any change of circumstances or to forward to the authority his certificate in accordance with the provisions of this Act;
- (d) Who, except as hereinafter provided, applies to be registered as a theatrical employer after his registration has been cancelled or while it is suspended;
- (e) Who on the hearing of any charge under this Act fails to produce to the court his certificate (if any) of registration without reasonable excuse, or produces a false certificate;
- (f) Who being a company or a firm, of which any person whose registration has been cancelled or is suspended, is a director or manager, or by any other means has control, or is a partner, as the case may be, applies to be registered as a theatrical employer.

(2) For the purposes of this section a theatrical employer shall be deemed to have abandoned theatrical performers if he absents himself from the place where the performers are in pursuance of the engagement without paying, or making arrangements for the payment of, all wages, fees, and expenses due, or to fall due, to the performers in respect of the engagement, unless he proves that he was not absent with intent to avoid the payment of any sum so due.

Punishment  
for offences  
under the  
Act.

6.—(1) Any offence under this Act shall render the person committing the same liable on summary conviction to a fine not exceeding fifty pounds with or without imprisonment for a period not exceeding three months, and in addition to any other penalty the court may in its discretion :—

- (a) Order the certificate of any registered theatrical employer to be delivered up and the registration to be cancelled;

- (b) Order the certificate of any registered theatrical employer to be delivered up and the registration to be suspended for such a period as the court may deem meet;
- (c) Order the person convicted to pay the whole or any part of the costs of the prosecution.

Any person affected by an order made under this section may appeal against the order to a court of quarter sessions in the manner prescribed by the Summary Jurisdiction Acts.

(2) An order made under this Act shall not come into force until seven days after it is made, or if an appeal has been entered within that period until the determination of the appeal.

(3) Where a person who has committed an offence under this Act is a company, the chairman and every director and every officer concerned in the management of the company shall be deemed to have committed the like offence unless he proves that the act constituting the offence took place without his knowledge or consent.

7. Where a court of summary jurisdiction is satisfied that a theatrical employer has failed to pay any money due to be paid by him to theatrical performers, and that in the opinion of the court such failure was due to a deliberate intention on the part of the employer to avoid the terms of any contract made between him and the performers, the court may make an order under paragraph (a) or paragraph (b) of subsection (1) of section six of this Act in respect of that employer.

Power to  
cancel or  
suspend  
registration  
for failure  
to pay  
salaries, &c.

8.—(1) Any registered theatrical employer whose registration has been ordered to be cancelled or suspended as aforesaid shall forthwith deliver up his certificate to the clerk of the court by which the order has been made, and the clerk of the court shall as soon as the order comes into force endorse the certificate with a record of the order for cancellation or suspension, as the case may be, and shall forward the said certificate so endorsed to the registration authority by which the said certificate was issued, and the said registration authority shall thereupon cause entry of such cancellation or suspension to be made in the register of theatrical employers, and in the case of suspension shall, when the period of suspension has

Cancelled  
and sus-  
pended  
certificates.

expired, return the certificate to the employer at the address entered on the certificate, and in the case of cancellation shall retain the said certificate.

(2) Where any order as to cancellation or suspension of registration has been made as aforesaid, the clerk of the court shall send notice thereof to the Secretary of State in the prescribed manner.

Persons who  
may not be  
registered.

9. Any person whose registration has been cancelled may, after giving notice in the prescribed manner to the registration authority by which his former certificate was issued of his intention so to do, apply to a court of summary jurisdiction for an order authorising him to register himself as a theatrical employer, and the court may thereupon, if satisfied that such person should be registered, make such order subject to such conditions as to the court may seem fit: Provided that no order shall be made under this section unless a period of at least three years has elapsed since the former registration was cancelled.

Certain con-  
victed persons  
not to act as  
servants or  
agents for  
theatrical  
employers.

10. Any person whose registration as a theatrical employer is cancelled shall be guilty of an offence under this Act if at any time while he remains unregistered he acts as agent for a theatrical employer.

Application.

11. This Act shall not apply—

6 & 7 Vict.  
c. 68.

(a) To any person to whom, or to whose agent, a licence under section seven of the Theatres Act, 1843, or a licence for music and dancing has been granted, but only so long as such licence remains in force:

(b) To any person who not for gain or in the way of business employs or engages theatrical performers for performances in aid of charitable objects or other similar purposes.

Rules and  
expenses.

12.—(1) The Secretary of State may make rules for prescribing anything which is to be prescribed under this Act, and generally for carrying this Act into effect.

(2) Any expenses of a registration authority under this Act, as far as not covered by fees, shall be defrayed in the case of the Common Council of the City of London out of the general rate, in the case of the council of a county borough out of the borough fund or borough

rate, and in the case of the council of a county out of the county fund.

**13.** In this Act, unless the context otherwise requires, the expression "theatrical employer" means any person who by himself or any agent engages or employs at any one time three or more theatrical performers. Interpretation.

The expression "theatrical performer" includes any actor, singer, dancer, acrobat or performer of any kind employed to act, sing, dance, play or perform in any theatre, music hall or other place of public entertainment, or to rehearse with a view to so acting, singing, dancing, playing or performing, as well as any person employed to take part in the acting or representation of any play, act, event or scene being photographed or otherwise recorded as a picture or pictures or other optical effect suitable or intended for being exhibited by means of a cinematograph or other similar apparatus; and the term theatrical performer shall include all persons employed or engaged for purposes of a chorus or crowd, but shall not include stage hands and members of an orchestra.

The expression "registration authority" means—

As respects the City of London, the common council;

As respects any county borough, the council of the borough;

As respects any other areas, the council of the county;

The expression "prescribed" means prescribed by rules made by the Secretary of State.

**14.** This Act shall apply to Scotland, subject to the following modifications:— Application to Scotland.

(1) The expression "county borough" shall mean a burgh having according to the census of nineteen hundred and twenty-one a population of or exceeding fifty thousand, and all other burghs shall for the purposes of this Act be deemed to be within the county:

(2) The expenses incurred by a town or county council under this Act shall, so far as not met out of fees, be defrayed in the case of a town



52 & 53 Vict.  
c. 50.

council out of the burgh general or police assessment and in the case of a county council out of the general purposes rate, provided that with respect to every burgh, which is for the purposes of this Act deemed to be within the county, subsections (3) and (4) of section sixty and section sixty-six of the Local Government (Scotland) Act, 1889, shall, so far as applicable, have effect as if such expenses were expenditure therein mentioned:

(3) The expression "court of summary jurisdiction" shall mean the sheriff, and the provisions regarding appeal to a court of quarter sessions shall not apply:

(4) The expression "a licence] for music and dancing" shall mean a licence granted under section three hundred and ninety-five of the Burgh Police (Scotland) Act, 1892.

55 & 56 Vict.  
c. 55.

Short title.

**15.**—(1) This Act may be cited as the Theatrical Employers Registration Act, 1925.

(2) This Act shall not apply to Northern Ireland.

## CHAPTER 51.

An Act to amend the Law relating to Separation and Maintenance Orders. [31st July 1925.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amend-  
ments of  
principal  
Act as to  
grounds on  
which  
orders may  
be made.  
58 & 59 Vict.  
c. 39.

**1.**—(1) An application by a married woman for an order or orders under the Summary Jurisdiction (Married Women) Act, 1895, as amended by any subsequent enactment (which Act as so amended is hereinafter referred to as the principal Act) on the ground of cruelty or neglect by her husband, may be made notwithstanding that the cruelty or neglect complained of has not caused her to leave and live separately and apart from him, and accordingly the words "and shall